

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON
PETITIONER/PLAINTIFF

V.

STATE OF MISSISSIPPI
DEFENDANT

NO. LK17-295

LAFAYETTE COUNTY
FILED

JUL 07 2020

JEFF BUSBY
CIRCUIT CLERK
BY: CM D.C.

MOTION FOR POST CONVICTION RELIEF

Comes now the Petitioner, Pro Se, and files this his Motion to set aside his plea of guilty and sentence rendered thereon and in support thereof would show unto the Court the following:

1.

That Petitioner waived formal indictment in the Third District of the Circuit Court of Lafayette County, Mississippi for Aggravated Stalking, to-wit: an AR15 rifle with intent to place Todd and/or Ashley Lynch in reasonable fear of great bodily injury, a copy of said Criminal Information was filed in this Court on the 6th day of July, 2017 and attached hereto as Exhibit "A"

2.

That on Petitioner plead guilty to the aforementioned alleged crime and was sentenced by Circuit Court of Lafayette County, Mississippi, on the 6th of July, 2017 in cause number LK17-295 to five years (5) in the custody of the Department of Corrections with the balance of sentence (five years) (5) to be served on supervised probation, a true copy of which is attached hereto as Exhibit "B".

3.

That this Motion is filed pursuant to MS Code 99-39-5 (Mississippi Uniform Post-Conviction Relief Collateral Act) and is filed in the correct jurisdiction and venue

4.

That the Respondent was in direct violation of the Petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given

5.

That petitioner's guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi.

6.

That petitioner received inadequate representation by his legal counsel on record, in which adequate council representation likely would have resulted in an outright dismissal of the State's charge. Furthermore, Petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal council.

7.

That the state has refused to comply with a Freedom Of Information Act (FOIA) request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against Petitioner. A copy of State's admission to receiving a phone call and basing their allegation upon the information received is attached hereto as Exhibit "C".

8.

That there exists additional evidence of material facts, not reasonably discoverable at the time of involuntary plea was given and not previously presented and heard, which requires vacation of the conviction or sentence in the interest of justice

WHEREFORE, PREMISES CONSIDERED, Plaintiff prays that this Court will enter an Order vacating and setting aside the guilty plea herein and the sentence in cause number LK17-295.

Respectfully submitted

Matthew Oliver Reardon
Petitioner/Plaintiff

By: 

Exhibit A

CRIMINAL INFORMATION

Aggravated Stalking
Miss Code Ann. 97-3-107(2)
Nm 5 years , or a \$3,000 fine or both

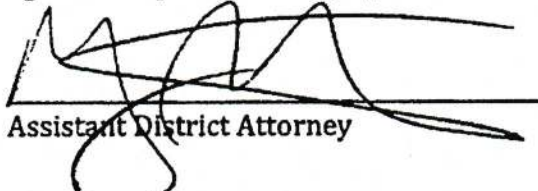
STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

CAUSE NO.: LK17-295

COMES NOW the State of Mississippi, by and through the District Attorney in and for the Third Circuit Court District of Mississippi, and charges by Criminal Information that, upon information and belief, that the said:

MATT REARDON

late of the County and State aforesaid on or about June, 2016, ^{or before May 8, 2017} in the County and State aforesaid, and within the jurisdiction of this Court, did unlawfully, willfully, feloniously commit he crime of stalking as defined in section 97-3-107 (1) and did so while displaying a deadly weapon, to wit: an AR15 rifle with the intent to place the Todd and/or Ashley Lynch in reasonable fear of great bodily injury, in violation of section 97-3-107(2) of the Mississippi Code of 1972, as amended, which offense is punishable by not more than 5 years imprisonment and a \$3,000 fine or both, contrary to the form of the statute and against the peace and dignity of the State of Mississippi.


Assistant District Attorney

FILED: 7-6, 2017

Recorded: _____, 2017

Barbara Mosley CLERK

_____, CLERK

In the Circuit Court of LAFAYETTE COUNTY

TO THE MISSISSIPPI DEPARTMENT OF CORRECTIONS:

NOTICE OF CRIMINAL DISPOSITION

You are hereby notified that at the JULY 2017 Term of the Circuit Court,
 Judge John Kelly Luther presiding, the following disposition was
 imposed for the crime(s) hereinafter described:

I. A. Disposition(s) Reported: Prisoner Commitment - Suspended Sentence/Probation
Revocation - Acquittal - Other
Non-Adjudication - RID - Shock Probation
 A-1. Provisional Sentence Bad Check Div. Pgm. - Restitution in CNTY
House Arrest/ISP - Parchman Alcohol & Drug Program
 B. Conviction as a Result of: X Guilty Plea - Guilty Plea after days Trial
Jury Verdict after Days in Trial - Rev. Hearing

II. Name MATT REARDON AliasSSN [REDACTED] Race W Sex M Date of Birth [REDACTED]Last Known Residence [REDACTED]Place of Birth ATLANTA GA Country of Citizenship [REDACTED]Alien Registration/Immigration # [REDACTED] FBI # [REDACTED]III. Count Charge CyberstalkingSentenced MSCode 97-3-107(2)Indicted MS Code 97-3-107(2)Count Charge [REDACTED]Sentenced MSCode [REDACTED]Indicted MS Code [REDACTED]Count Charge [REDACTED]Sentenced MSCode [REDACTED]Indicted MS Code [REDACTED]IV. Date of Sentence 07/06/2017 Indictment Date 07/07/2017 DA Bar# 000010650Sentence(s) Imposed by Order: Count [REDACTED]

SUPERVISED PROBATION BALANCE OF SENTENCE

Credit [REDACTED](Days) [REDACTED]Count [REDACTED]Count [REDACTED]

TO BE SERVED

SUSPENDED

PROBATION

POST RELEASE

METHOD OF DISP.

SUPERVISED PROBATION

Count [REDACTED]Count [REDACTED]Count [REDACTED]Conc: [REDACTED]Cons: [REDACTED]Conditions of Sentence: Habitual Psychological/Psychiatric Alcohol/DrugOther: NO CONTACT W LYNCH'S BANISHED FROM LAFAYETTE EXCEPT MANDA CHAN COURT

V. Dates Confined [REDACTED] to [REDACTED] to [REDACTED] to [REDACTED]
[REDACTED] to [REDACTED] to [REDACTED] to [REDACTED]
[REDACTED] to [REDACTED] to [REDACTED] to [REDACTED]

Released on Bond Pending Appeal [REDACTED] to [REDACTED]Currently Housed In [REDACTED]VI. Fine [REDACTED] Indigent Fee [REDACTED] Restitution [REDACTED] Court Costs [REDACTED]Conditions of Payment [REDACTED]

BARETTA MOSLEY

LAFAYETTE COUNTY COURT

By: [Signature]

July 07, 2017

Send Prisoner Commitments, Provisional Sentence Orders and Revocation Orders To:

Records Department

MDOC (Fax: 601-973-3879)

P.O. Box 24388

Jackson, Ms 39205

Court Statistics Division

Administrative Office of Courts (AOC)

P.O. Box 117

Jackson, MS 39205-0117

Send Suspended Sentence/Probation Notices, Provisional Sentence Orders and Rev. Orders to:

Data Operations

MDOC (Fax: 601-973-3879)

P.O. Box 24388

Jackson, MS 39205

Court Statistics Division

Administrative Office of Courts (AOC)

P.O. Box 117

Jackson, MS 39205-0117

Send Acquittal/Other Notices to: Court Statistics Division, AOC at its address listed above.

TO THE MISSISSIPPI DEPARTMENT OF CORRECTIONS:

NOTICE OF CRIMINAL DISPOSITION

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Bad Check Div. Pgm. Restituion in CNTY
House Arrest/ISP Parchman Alcohol & Drug Program
B. Conviction as a Result of: X Guilty Plea Guilty Plea after days Trial
Jury Verdict after Days in Trial Rev. Hearing

II. Name MATT REARDON Alias 1
SSN [REDACTED] Race W Sex M Date of Birth [REDACTED]
Last Known Residence [REDACTED]

Water Valley MS 38965
Place of Birth ATLANTA GA Country of Citizenship [REDACTED]
Alien Registration/Immigration # [REDACTED] FBI # [REDACTED]

III. Count Charge Cyberstalking
Sentenced MSCode 97-3-107(2) Indicted MS Code 97-3-107(2)
Count Charge [REDACTED]
Sentenced MSCode [REDACTED] Indicted MS Code [REDACTED]
Count Charge [REDACTED]
Sentenced MSCode [REDACTED] Indicted MS Code [REDACTED]

IV. Date of Sentence 02/21/2018 Indictment Date 07/07/2017 DA Bar# 000010650
Sentence(s) Imposed by Order: Count SUPERVISED PROBATION BALANCE OF SENTENCE
Credit (Days) Count [REDACTED]
Count [REDACTED]

	TO BE SERVED	SUSPENDED	PROBATION	POST RELEASE	METHOD OF DISP.
Count					SUPERVISED PROBATIO
Count					
Count					

Conc: [REDACTED]
Cons: [REDACTED]

Conditions of Sentence: Habitual Psychological/Psychiatric Alcohol/Drug
Other: NO CONTACT W LYNCH'S BANISHED FROM LAFAYETTE EXCEPT MANDA CHAN COURT

V. Dates Confined [REDACTED] to [REDACTED] to [REDACTED] to [REDACTED]
[REDACTED] to [REDACTED] to [REDACTED] to [REDACTED]
[REDACTED] to [REDACTED] to [REDACTED] to [REDACTED]

Released on Bond Pending Appeal [REDACTED] to [REDACTED]
Currently Housed In [REDACTED]

VI. Fine [REDACTED] Indigent Fee [REDACTED] Restitution [REDACTED] Court Costs 630.50

Conditions of Payment PAYMENTS \$50 MONTH START 4/1/18

By: BARETTA MOSLEY
LAFAYETTE COUNTY COURT
February 21, 2018

Send Prisoner Commitments, Provisional Sentence Orders and Revocation Orders To:
Records Department Court Statistics Division
MDOC (Fax: 601-973-3879) Administrative Office of Courts (AOC)
P.O. Box 24388 P.O. Box 117
Jackson, Ms 39205 Jackson, MS 39205-0117

Send Suspended Sentence/Probation Notices, Provisional Sentence Orders and Rev. Orders to:
Data Operations Court Statistics Division
MDOC (Fax: 601-973-3879) Administrative Office of Courts (AOC)
P.O. Box 24388 P.O. Box 117
Jackson, MS 39205 Jackson, MS 39205-0117

Send Acquittal/Other Notices to: Court Statistics Division, AOC at its address listed above.

Lafayette County Sheriff's Office

711 Jackson Avenue East, Oxford, MS 38655

Reporting Officer's Narrative

Exhibit C

Report Date:
05/30/2017

Type of Incident
97-3-107 - STALKING, REPEATEDLY FOLLOWING,
HARASSING OR MAKING A THREAT

Complaint No:
L17-05138

Case Status
CLOSED

Narrative:

On 05-24-2017 I, Investigator Jarrett Bundren, was at the office and took a phone call in reference to a stalking/harassment complaint. I followed up on the threats and harassment that was reported to me. I was advised that there were a lot of threats on facebook by Matt Reardon, specifically toward Frank and Marlee's and Todd Lynch. I looked at Matt's facebook page and there were several videos and posts of Matt with guns verbally making threats toward Todd and his business. Todd said that he wanted to file charges. After further looking into the threats on facebook and other threats and harassment, Todd filed charges on Matt and Matt was arrested and booked in at Lafayette County Detention Center.

Reporting Officer 7530 BUNDREN, JARRETT

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Approving Officer C8797 CATHY CONNER

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